

privilege log or otherwise justifying the redactions in its response. (*Id.* at ¶ 17, Ex. B.) Sudweeks explains that the redactions concern bond information it views as responsive to RFP No. 20 rather than RFP No. 17, but that explanation does not resolve the deficiency. In any event, CCP § 2031.240(b) provides that when a party objects to producing part of an item, the response must “[i]dentify with particularity any document . . . falling within any category of item in the demand to which an objection is being made” and “[s]et forth clearly the extent of, and the specific ground for, the objection.” (CCP § 2031.240(b)(1)–(2).) Sudweeks’ response does neither. The motion therefore is not moot.

SANCTIONS

CCP § 2031.310(h) requires the Court to impose a monetary sanction on any party or attorney who unsuccessfully opposes a motion to compel a further response, unless the Court finds that the party acted with substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.310(h).) A responding party’s belated, post-motion production does not automatically moot a motion to compel or foreclose a sanctions award; the Court retains discretion to grant the motion and award fees where the belated production appears to have been prompted by the filing itself. (*Sinaiko, supra*, 148 Cal.App.4th at 409.)

Sudweeks did not act with substantial justification. Its objections were unsupported by any declaration, privilege log, or identified privacy or proprietary interest, and it produced the responsive contracts only after Plaintiff filed the motion. Monetary sanctions in favor of Plaintiff are therefore appropriate.

Plaintiff requests \$3,360.00; Plaintiff’s counsel declares an hourly rate of \$825, based on more than 29 years of practice with particular expertise in prevailing wage claims under Lab. Code § 1770 *et seq.*, and reports four (4) hours on this motion—2.5 hours preparing the motion, memorandum, declaration, and separate statement; 1 hour on the reply; and 0.5 hour for the hearing—plus a \$60 filing fee. (Donahoo Decl. ¶ 11.) Court awards \$1,560.00 (3 hours at \$550/hour and filing fees).

Sudweeks’ cross-request for \$4,810.00 is denied. Sudweeks did not comply with section 2023.040, which requires a separate notice of motion identifying the persons against whom sanctions are sought. (CCP § 2023.040.) In any event, Sudweeks, not Plaintiff, is the party who unsuccessfully opposed the motion within the meaning of section 2031.310(h), and is therefore the party subject to sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601231	THOITS VS OREMOR OF RIVERSIDE GM LLC	DEMURRER

Tentative Ruling: Defendant’s Demurrer is overruled.

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) Demurrers for failure to state a cause of

action are commonly referred to as “general” demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as “special demurrers.” (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

MCAC argues causes of action five (fraud) and six (negligent misrepresentation) fail. Defendant asserts Plaintiff bases her fraud and negligent misrepresentations claims upon a purported statement made by MCAC’s technician that the Vehicle needed a new engine and failed to complete warranty repairs to the engine. Defendant explains TAG Warranty was the entity that denied coverage for the engine repair, not Defendant. Thus, the FAC allegations do not establish MCAC’s intent to defraud or that it made any negligent misrepresentation. Defendant complains Plaintiff has failed to provide any factual support for her allegations.

In opposition, Plaintiff maintains the causes of action are sufficiently pled, referencing specific allegations in the FAC. Plaintiff argues the demurrer recasts the fraud cause of action as though it depended entirely on which entity denied full warranty coverage. The elements of a cause of action for fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity (scienter), (3) intent to deceive and induce reliance, (4) justifiable and actual reliance, and (5) resulting damage. (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 990.)

Negligent misrepresentation, which is a form of deceit, is a separate and distinct tort from general negligence and each cause of action has different elements. (*Bock v. Hansen* (2014) 25 Cal.App.4th 215, 227-228; citing *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370.) The elements for a claim of negligent misrepresentation are: (1) misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, and with intent to induce another’s reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage. (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 127.)

Fraud and negligent misrepresentation must be pleaded with particularity, that is, the pleading must set forth how, when, where, to whom, and by what means representations were made. (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027-1028.) However, less particularity is required where the defendant has superior knowledge of the facts. (*Committee on Children’s Television, Inc. v. General Foods Corp* (1983) 35 Cal.3d 197, 216; *Okun v. Superior Court* (1981) 29 Cal.3d 442, 458.)

Here, the FAC alleges an authorized agent and salesperson of Riverside Chevrolet represented that the Vehicle was in excellent mechanical and roadworthy condition and that the Chevy Care Plan/Warranty provided comprehensive “bumper-to-bumper” coverage for all mechanical issues and future repairs. (FAC ¶¶20, 69.) When the check engine light illuminated on June 17, 2025, MCAC, an authorized GM/Chevrolet dealership, inspected the Vehicle. (*Id.* at ¶27.) “At MCAC, service personnel initially confirmed and assured that the Vehicle was covered under the Chevy Care plan. This assurance was given despite the Vehicle being slightly beyond the original manufacturer’s warranty mileage period, and led Plaintiff to believe the necessary repairs would be handled and covered appropriately under the Chevy Care Plan.” (*Id.* at ¶28.) Thereafter, MCAC tech Edward Brady told Plaintiff, “[Y]ou need a new engine” but

that the engine “would not be covered unless approved by the warranty company GM Warranty.” (*Id.* at ¶¶29-30.) It is alleged “Riverside Chevrolet and Tag Warranty represented, through the authorized agent/salesperson acting within the course and scope of his/her employment, that the Chevy Care plan would cover all mechanical breakdowns and repairs required during the warranty period” and that Defendants knew these statements were false. (*Id.* at ¶¶70-71, emphasis added.) Defendants made these representations with the intent to induce Plaintiff to execute the RISC, and Plaintiff reasonably relied on such representations, incurring damages. (*Id.* at ¶¶72-74, 77-79.) The FAC specifies that “MCAC, acting as an authorized agent of GM/Chevrolet dealership and repair facility, knowingly participated in and facilitated the wrongful denial of Plaintiff’s warranty claim, without completing a full inspection regarding Plaintiff’s rights. (*Id.* at ¶76.)

Accordingly, the FAC sufficiently alleges that MCAC’s agent represented the engine would be covered and thereafter denied coverage without completing inspection.